

Response to Boulton Submission

Hutchinson v The Queen [2015] VSCA 115

[17] ...it should not be thought that *Boulton* offers a ‘Get Out of Jail Free’ card in situations where a sentence of imprisonment is necessary in a given case to satisfy the various purposes for which a sentence may be imposed. One of the purposes for which a sentence may be imposed is, of course, ‘to punish the offender to an extent and in a manner which is just in all of the circumstances’.¹ There will be cases — indeed, many cases — where, having regard to the seriousness of the offending, a CCO will be insufficiently punitive to satisfy the need to punish the offender in a manner which, in all of the circumstances, is just. At the risk of again traversing well-trodden ground, it is axiomatic that in every case the sentence imposed must depend on its own facts, including the circumstances of the offending and the offender, and the circumstances of aggravation and mitigation.

[18] ...nothing in *Boulton* constrains a judge to impose a CCO where such a sentence would not be sufficient to reflect the objective seriousness of the offence and the circumstances of the offender.

Atanackovic v The Queen [2015] VSCA 136

[160] We would add that, contrary to the assumption that appears to underpin some submissions that have been made to this Court since *Boulton*, that case, where it applies, has not elevated CCOs to the status of ‘sentencing option of choice’ for any particular offences. In saying that CCOs may be suitable even in cases of relatively serious offences which might previously have attracted a medium term of imprisonment, *Boulton* was simply making the obvious point that, given the multifaceted features of CCOs, a CCO may be more appropriate than imprisonment across a broad range of offences. Likewise, the statement in the case that a CCO, where appropriate, should be preferred to imprisonment, is a salutary reminder of the longstanding principle of parsimony. Such statements do not create any presumption that a CCO is suitable for any particular offence, still less that it is appropriate in the circumstances of any particular offender. The appropriate sentencing disposition in each case will depend on the statutory provisions and sentencing considerations that are pertinent to that case, informed by relevant case law.

- The considerations in Boulton do not apply to Commonwealth offences due to the different sentencing principles and hierarchy that exist in the Commonwealth legislation.²

Dyason v The Queen [2015] VSCA 120

- Considers and affirms the reasoning in *Dpp v Bulfin*³ which stipulates that in matters where general deterrence is a primary consideration that a substantial period of actual custody is to be preferred over a longer head sentence and short non-parole period.
- Outlines that the considerations in *Bulfin* remain applicable to situations involving short periods of imprisonment combined with a CCO.

¹ *Sentencing Act 1991*, s 5(1)(a).

² *Atanackovic v The Queen* [2015] VSCA 136, [111].

³ [1998] 4 VR 114.

...the element of general deterrence will usually carry particular significance in sentencing for crimes such as the present, both in relation to the total effective sentence and the non-parole period; together with a requirement for strong denunciation by the sentencing court. For persons first contemplating corporate criminality, a sentence which requires an offender to spend a substantial term in actual custody by virtue of the non-parole period fixed, is, in my view, much more likely to focus their attention and have real deterrent impact than a longer head sentence, much of which is likely to be served on parole after the offender's release from custody. If this view be correct, to fix an unduly short non-parole period, would, in cases such as the present, be quite subversive of the whole concept of general deterrence, notwithstanding that a significantly longer head sentence was imposed: *DPP v Bulfin* [1998] 4 VR 114 at 131–2 per Charles JA.

We reject the submission that a short period of imprisonment combined with a CCO is relevantly to be distinguished from the position addressed in *Bulfin*, a period of imprisonment with a wide gap between the head sentence and the non-parole period, on the basis that the former is sufficiently punitive whilst the latter is not. It seems to us that all of the considerations addressed by Charles JA continue to apply to a situation where a short period of imprisonment combined with a CCO is the sentence in the same way as would be the case where a period of imprisonment is imposed with a short non-parole period and a wide gap between the non-parole period and the head sentence: *Dyason v The Queen* [2015] VSCA 120 at 39 per Whelan JA, Santamaria JA and Beach JA